

LEASE AGREEMENT

BY AND BETWEEN

CITY OF BRECKSVILLE, LESSOR

AND

**BRECKSVILLE-BROADVIEW HIEGHTS CITY SCHOOL
DISTRICT**

FOR A CERTAIN BUILDINGS AND APPURTENANT
AREAS LOCATED AT:

STADIUM DRIVE
BRECKSVILLE, OHIO 44141

LEASE AGREEMENT

THIS LEASE AGREEMENT made this 31st day of October, 2019 between the CITY OF BRECKSVILLE, an Ohio Municipal Corporation (herein called the "City" or "Lessor"), as Lessor, and BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT, as Lessee, pursuant to authority duly adopted by the City on _____ and authorized by the appropriate proceedings of the Lessee taken on _____, 2019, respectively, copies of which are attached hereto as Exhibits "A" and "B." As required by the context herein, and as permitted by law, reference to the "City" shall also include its respective officials, agents and employees.

The City for and in consideration of the covenants and agreements hereinafter set forth on the part of Lessee to be kept and performed, has demised and leased, and does hereby demises and lease unto the Lessee, and the Lessee does hereby take and hire, upon and subject to the conditions hereinafter expressed, the property known as Stadium Drive consisting recreational facilities with a street address of 7005 Stadium Drive, Brecksville, Ohio, including the use of access roads and improvements therein, the Lease Premises being depicted in Exhibit "C" attached hereto and herein called the "Leased Premises" or "Premises." The Lease Premises is a part of certain other lands and buildings owned by the City of which the Lease Premises is a part, which collectively are known as the "Stadium Drive Complex."

SECTION 1

TERM

1. Unless terminated soon as provided herein, the term of this Lease Agreement shall be for a period of twenty (20) years commencing October 31, 2019 and ending October 30, 2039.

SECTION 2

BASE RENT

2. The rent shall be considered prepaid as part of the overall land swap involving the Lessee receiving acreage at Blossom Hills and the Lessor receiving Central School, Comstock House and the Stadium Drive property and the joint development of the Lessee's Elementary School and the Lessor's Field House through September 30, **2039**.

SECTION 3

MAINTENANCE OF PREMISES

3.1 General Repairs and Maintenance. The Lessee shall be responsible for lining the playing fields for its competitions and for cutting the grass during the School Year (as determined by the Board of Education). It shall coordinate lining the fields with the City. The Lessor shall be responsible for all landscaping (other than cutting the grass during the School Year) utility, maintenance and operational costs of the Premises. The Lessee shall be responsible for cutting the grass (other than during the School Year). The Lessor shall maintain the Premises in a good and safe condition, repair and state of cleanliness, and shall make all repairs and replacements of every kind, nature and description as are necessary or required by any governmental entity.

3.2. Other Repairs and Replacements. The Lessor may also undertake the entire cost of each and every other repair or replacement required at or for the Premises, including the parking lots exclusively serving the Premises. It is the intention of this provision to totally and completely relieve the Lessee of any and all responsibility for the cost or the undertaking of any and all repairs or placements for these Premises. All environmental or other health hazards which may exist at these Premise shall be removed by the Lessor at its sole cost and expense. In addition, during the term of this Lease Agreement or any renewals or continuations thereof, the Lessor at its sole cost and expense shall perform such work as may be necessary to comply with any order of any governmental entity relative to these premises for any lawful reason whatsoever. The Lessor additionally agrees to pay any fees, fines, penalties or other monetary imposition levied or imposed upon these Premises by any governmental entity for whatever lawful reason resulting from any action or inaction of the Lessor.

3.3. **Plan Approval.** No structural changes, additions, or remodeling of the Premises shall be made by the Lessee except with the prior written consent of the City. In the event of any proposed additions, remodeling or repairs which are to be made to the Premises, the Lessee shall provide the City with the plans and specifications for same and no work shall commence until such time as such plans and specifications are approved by the City in writing. Lessee has no obligation to undertake any such improvements.

3.4 **Quality of Work.** The Lessee and Lessor agree to have all work done in a manner consistent with all applicable governmental laws, rules, regulations and to secure any and all necessary permits and/or licenses to perform said work.

SECTION 5

USE OF PREMISES

5.1 The Lessee agrees that the Premises shall be exclusively used for its athletic program and homecoming activities including the annual bonfire. The Lessor reserves the right to use the Premises at times when the Lessee does not need it for its athletic program provided such use does not degrade the playing field such that the Lessee cannot use it. The Lessee shall deliver to the Lessor a schedule of practices and games by March 1st of each year for the following academic year. The Lessee shall not assign this Lease or any right, title, interest, estate or obligation of the Lessee hereunder, or sublease, without the express prior consent of the City, which consent may be withheld for any reason within the sole discretion of the City.

5.2 **Other Uses.** The Lessee agrees that it will not permit, authorize or allow any other person, organization or other entity, whether private or public, to use the Premises for any purpose whatsoever without first obtaining the City's written permission.

SECTION 6

SIGNAGE

6. All exterior signs of every kind, nature and description currently at Stadium Drive are approved by the Lessor. No additional signs shall be erected by Lessee or its agents during the term of this Lease Agreement or any renewal or continuation hereof, unless and until the Lessee first secures the written approval of the City. Lessee, at the end of the term of the Lease or any renewal and continuation hereof, shall be required to remove said signs from the Premises and Lessee shall repair any damage that may have been occasioned to the premises by reason of such removal.

SECTION 7
LANDSCAPING

7. The Lessor shall in all respects and at its sole expense maintain the grounds, including plant beds, walks and driveways, if any, in good condition, repair and state of cleanliness.

SECTION 8
RUBBISH REMOVAL

8. The Lessor shall make arrangements for and pay all costs associated with the collection, removal and disposal of any and all wastes generated by its use of the Premises.

SECTION 9
INSPECTION OF RECORDS

9. The Lessee shall at all reasonable times give to the authorized representative of the City such information relating to the operation of said Premises as

they may reasonably request, and shall permit them to inspect the records of the Lessee relating to said operations.

SECTION 10

MANAGEMENT CONFERENCE

10. Upon reasonable notice, the representatives of the City and the Lessee shall meet at the request of either, to discuss the operations of the parties under this Lease.

SECTION 11

RIGHT TO ENTER PREMISES

11. The City by its duly authorized representatives, shall have the right to use the Premises after usual business hours or during usual business hours in the case of an emergency, for the purpose of inspecting it and the operations therein and for the purpose of making repairs which may be necessary by reason of the Lessee's failure to perform any such act required of it hereunder, provided that to the extent practicable any such work shall be scheduled so as to minimize interference with normal Building operations.

SECTION 12

MODIFICATIONS TO STRUCTURE

12. Intentionally omitted

SECTION 13

UTILITY CHARGES REIMBURSEMENT

13. Intentionally omitted

SECTION 14

INSURANCE

14.1 Public Liability Insurance. Beginning with the commencement of this Lease and continuing thereafter during the term of this Lease, or any renewal or continuation hereof, the Lessee shall keep in full force and effect Public Liability Insurance, naming the City of Brecksville as an additional insured, with a minimum combined single limit of one million dollars (\$1,000,000) on account of bodily injuries to or death of one or more persons as a result of any one accident or disaster and on account of damage to property, and shall deposit a copy of the policy, or policies, of such insurance, or Certificates thereof with the City.

14.2 Fire and Extended Coverage. Beginning with the commencement of this Lease, the City shall at all times during the term or any renewal or continuation hereof maintain in full force and effect, Fire and Extended Coverage policy or policies of insurance in an amount not less than one hundred percent (100%) of the full replacement cost of the leased Building as updated from time to time during the entire term, renewal or continuation of the Lease.

14.3 Said policy or policies shall provide protection against any peril included within the classification "Fire and Extended Coverage" together with insurance coverage against sprinkler damage, vandalism and malicious mischief.

14.4 In the event the building leased to the Lessee shall be more than twenty-five percent (25%) destroyed by the elements, fire, or other causes, the City may cancel this lease within thirty (30) days after such destruction, by giving notice to the Lessee as provided in Section 20 of this Lease entitled "Notices" stating such intention to terminate this Lease. In the event the City exercises such option, this Lease shall cease upon the mailing of such notice, and the Lessee shall surrender possession of the Premises. The City shall retain all proceeds received by it from any insurance carrier in settlement of any loss described herein. In the event the City does not cancel this Lease Agreement within thirty (30) days after more than twenty-five percent (25%) destruction of the building, or in the event the building is destroyed twenty-five percent (25%) or less, the City shall proceed to make the repairs necessary to put the building in its former condition and said Lease shall not terminate, but during the time in which such repairs are being made, no

rent shall be payable except pro-rata for such parts of said Premises as may be then used and occupied by the Lessee.

14.5. The City shall not be obligated to make any repairs or replacement to the damaged premises beyond the sums available to it from the proceeds of the insurance described in Paragraph 21 herein. However, the Lessee may add such moneys to any insurance proceeds as are necessary to complete repair, reconstruction or replacement of the Premises to the extent it desires additional work to be undertaken.

14.6. Mutual Waiver of Subrogation. To the extent permitted by law and provided the same does not invalidate or diminish any insurance required to be carried hereunder, Lessor and Lessee each agree to cause to be included in their respective policies of fire and extended coverage insurance the agreement of the insurer thereof that said policies shall not be invalidated by a waiver of claim by the insured against Lessor or Lessee, as the case may be, and each will furnish evidence thereof to the other. In addition to any other waiver herein Lessor and Lessee each hereby waive any claim against the other for any property loss resulting from any cause, including negligence of the other, to the extent of the insurance proceeds available therefor. All property insurance policies carried by either party covering the Premises, including but not limited to, contents, fire, and casualty insurance shall to the extent permitted by law expressly waive any right on the part of the insurer against the other party. The parties hereby agree that their policies will include such waiver clause or endorsement so long as the same shall be obtainable without extra cost, or if extra cost shall be charged therefor, so long as the Lessee pays such extra cost for all policies whether Lessor's or Lessee's. If cost shall be chargeable therefor on behalf of the Lessor's policy or policies, the Lessor shall notify Lessee of the cost and the Lessee shall pay same. The failure of any insurance policy to include such waiver clause or endorsement shall not affect the validity of this Lease.

SECTION 15

INDEMNIFICATION OF LESSOR

15. Subject to appropriation by the Lessee's Board of Education, Lessee shall defend, indemnify and save harmless the City, its agents and employees against any

liability or claim thereof, including the expenditures of attorney fees in the defense of any litigation or otherwise, whether for injury to person, including death, or damage to property arising out of the condition, use or in any way related to the leased Premises occurring after delivery of exclusive possession of said Premises to Lessee.

SECTION 16

COMPLIANCE WITH LAW

16.1 The Lessee, during the term of this Lease and any renewal or continuation thereof, shall comply with all applicable governmental laws, ordinances, regulations and requirements relating to maintenance, use and occupancy of the Premises.

16.2. The Lessee shall comply with all orders, regulations, rules and requirements of every kind and nature relating to the Premises and of any other governmental authority having jurisdiction with respect thereto; will pay the cost and expense incidental to such compliance and will indemnify and save harmless, subject to Lessee's Board of Education appropriation, the City from expense and damage by reason of any notice, orders, violation or penalties, or by reason of failure to comply with the orders, regulations, rules or requirements of any such other authority.

SECTION 17

LIENS

17. The Lessee shall not permit any mechanic's, materialmen's, service or similar liens or attested accounts or claims against public funds to remain upon the leased Premises for labor or material furnished to Lessee or claimed to have been furnished to Lessee in connection with work of any character performed or claimed to have been performed on the leased Premises or at the direction or with the consent of the Lessee whether such work was performed or materials furnished after the commencement of the term of this Lease. The Lessee may, however, contest the validity of any such lien or claim, provided Lessee shall give the City reasonable security or take other action in accordance with Chapter 13 of the Ohio Revised Code, to insure payment and to prevent any sale, foreclosure or forfeiture of the leased Premises by reason of such non-payment, if required by City. Upon a final determination of the validity of any such lien or claim,

Lessee shall immediately pay any judgment of decree rendered against Lessee or City with all proper costs and charges and shall cause such lien to be released of record without any cost to City.

SECTION 18

REMEDIES FOR BREACH

18.1 If the Lessee at any time during the term of this Lease or any renewal or continuation thereof, shall fail to observe or perform any of the Lessee's covenants, agreements, or obligations hereunder; and if any such default shall not be cured within thirty (30) days after the City shall have given written notice to the Lessee specifying such default; and if at the expiration of said number of days after the service of such notice, the default or happening of the contingency upon which said notice was based shall continue to exist; or in the case of default or contingency which cannot with due diligence be cured within a period of thirty (30) days; if the Lessee fails to proceed promptly after the service of such notice and with all due diligence to cure the same and thereafter to prosecute the curing of such default with all due diligence (it being intended that in connection with a default not susceptible of being cured with due diligence within thirty (30) days, that the time of the Lessee within which to cure the same shall be extended for such period as may be necessary to complete the same with due diligence); or if the Lessee abandons or vacates the said Premises without authorization or permitted cause; then in any such event, the City shall have the right while such default shall continue, to give the Lessee notice of the City's intention to terminate this Lease and all the Lessee's rights hereunder, on a date specified in such notice, which date shall not be less than ten (10) days after the date of the giving of such notice, on the date specified in such notice, this Lease and all rights granted to the Lessee hereunder shall come to an end; and the Lessee hereby covenants to peacefully and quietly to yield up and surrender to the City such leased Premises and all structures, buildings and improvements located thereon.

18.2 If the Lessee fails at any time to make any payment or perform any act on their part to be made or performed hereunder, then the City may, but shall not be obligated to so do, and without notice to or demand upon the Lessee, and without

releasing the Lessee from any of its obligations under this Lease or waiving any default, make such payment or perform such act.

18.3 If the failure on this part of the Lessee includes the failure to procure or maintain the insurance as provided in Section 14 hereof, then the City may obtain such insurance at the Lessee's expense, without regard to the notice requirements of this Section.

18.4 All sums paid by the City and all costs and incidental expenses in connection with such performances by the City as contemplated herein shall be reimbursed to the City by the Lessee on demand, and the City shall have, in addition to any other right or remedy of the City, the same rights and remedies as in the case of failure of the Lease to observe any of their other covenants as provided in this Section.

SECTION 19

REDELIVERY OF PREMISES

19. At the expiration of the term of this Lease or of any renewal or continuation thereof, the Lessee will surrender and deliver up to the City the demised Premises and the improvements thereon, in good repair and condition, subject only to ordinary wear and tear.

SECTION 20

NOTICES

20. Any notice, permitted or required hereunder, shall be in writing and shall be deemed to have been properly given by mailing such notice by registered or certified mail, postage prepaid, addressed to such party as follows:

- (a) To the Lessor:
City of Brecksville
Brecksville City Hall
9069 Brecksville Road
Brecksville, Ohio 44141

- (b) To the Lessee:
Brecksville-Broadview Heights City School District
6638 Mill Road
Brecksville, Ohio 44141
- (c) Or such other address as either party may from time to time designate in writing at least fifteen (15) days in advance of such notice.

SECTION 21

POTENTIAL OPTION TO RENEW OR EXTEND

21.1 Lessee may be given an opportunity by the City to renew or extend this Lease Agreement for two (2), three (3) year periods, upon the same terms and conditions contained herein. In the event the City does not have any alternative use for the Premises, as solely determined by the City, it may offer Lessee the right to renew or extend this Agreement as provided herein.

21.2. In the event the Lessee desires the City to consider allowing it to extend or renew this Agreement, the Lessee shall provide the City with written notice of such request at least three hundred sixty-five (365) days prior to the expiration of the initial term specified herein.

SECTION 22

QUIET ENJOYMENT

22. The City hereby covenants and agrees that if Lessee shall perform all of the covenants and agreements herein stipulated to be performed on Lessee's part, Lessee shall at all times during the continuance hereof have the peaceful and quiet enjoyment and possession of the Premises without any manner of hindrance from the City or any person or persons lawfully claiming the Premises, save and except in the event of the taking of said Premises by public or quasi-public authority or as provided in Paragraph 32 of this Agreement.

SECTION 23

MISCELLANEOUS

23.1 All terms and words used in this Lease, regardless of the number and gender in which they are used, shall be deemed and construed to include any other number, singular or plural, and in any other gender, masculine, feminine or neuter, as the context or sense of this Lease or any paragraph or clause herein may require, the same as if such words have been fully and properly written in the number and gender. The headings of Sections and paragraphs, if any, to the extent used herein are used for reference only, and in no way define, limit or describe the scope of intent of any provision hereof.

23.2 All references to duly enacted statutes, contained herein, shall also apply to such statutes as they may hereafter be amended, modified or reenacted. In the event of the repeal of any referenced statute, comparable statutes, if any, shall govern, if possible.

23.3 This Lease may be executed in any number of counterparts, each of which, when so executed and delivered, shall be deemed an original, but such counterparts together shall constitute but one and the same instrument.

23.4. The City agrees to consider all reasonable requests made by Lessee in good faith concerning the matters contained herein.

SECTION 24

SUCCESSORS

24. The covenants and agreements herein contained shall bind and inure to the benefit of the parties and their respective successors and assigns as the same may be permitted herein.

SECTION 25

MEMORANDUM OF LEASE

25. Either party may, at its expense, record a short form memorandum of the Lease, which shall describe the term, renewal rights and other such pertinent information as such party deems appropriate. However, the failure to record such a short form

memorandum shall not affect or impair the validity or effectiveness of the within Lease as between the parties, their successors or assigns.

IN WITNESS WHEREOF, the City has caused this Lease to be executed by its Mayor and the Lessee has caused this Lease to be executed by the _____ and _____ of the Lessee, as of the date first above written, pursuant to authority duly granted by the Council of the City of Brecksville and the appropriate governing authority of the Lessee.

Signed, sealed and acknowledged
in the presence of:

THE CITY OF BRECKSVILLE, Lessor

Jerry N. Hruby, Mayor
City of Brecksville

APPROVED AS TO FORM ONLY:

David J. Matty, Director of Law
City of Brecksville

Signed, sealed and acknowledged
in the presence of:

THE BRECKSVILLE-BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT, Lessee

Authorized Officer

Title

Authorized Officer

Title

CITY OF BRECKSVILLE

STATE OF OHIO)
) SS:
COUNTY OF CUYAHOGA)

NOTARY PUBLIC

On this ____ day of _____, 2019, before my, a Notary Public in and for said County and State, personally appeared Jerry N. Hruby, the Mayor of the City of Brecksville, Ohio, to me personally known, and acknowledge the execution of this forgoing instrument, and that the same is his voluntary act and deed on behalf of said City of Brecksville, Ohio, and the voluntary and corporate act and deed of said City of Brecksville, Ohio.

IN WITNESS WHEREOF, I have hereunder subscribed my name and affixed my official seal on the date and year aforesaid.

Notary Public

BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT

STATE OF OHIO)
) SS:
COUNTY OF CUYAHOGA)

NOTARY PUBLIC

On this ____ day of _____, 2019, before my, a Notary Public in and for said County and State, personally appeared _____ and _____, the _____ and the _____, to me personally known, and acknowledge the execution of this forgoing instrument, and that the same is his voluntary act and deed on behalf of said City of Brecksville, Ohio, and the voluntary and corporate act and deed of said City of Brecksville, Ohio.

IN WITNESS WHEREOF, I have hereunder subscribed my name and affixed my official seal on the date and year aforesaid.

Notary Public

EXHIBIT A
ORDINANCE BY CITY AUTHORIZING LEASE

EXHIBIT B
AUTHORIZATION BY BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT

EXHIBIT C
PLAT OF LEASED PREMISES

